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7 doing business as Fred's Szechuan Chinese
Restaurant

8 **SUPERIOR COURT FOR THE STATE OF CALIFORNIA**
9 **COUNTY OF NEVADA**

10 SHENG WANG CHEN,
11 Plaintiff,

12 v.

13 FREDERICK BOEY, an individual doing
14 business as FRED'S CHINESE
15 RESTAURANT; RONGXIA XU, an
16 individual doing business as FRED'S
CHINESE RESTAURANT; DOES 1-10,
Defendants.

17 FREDERICK BOEY and RONGXIA XU,
18 individuals doing business as FRED'S
19 SZECHUAN CHINESE RESTAURANT,
20 Cross-Plaintiffs,

21 v.

22 SHENG WANG CHEN and XIAOYONG
23 X. L. LAI (AKA "X. Young Lai"),
24 individuals, THE LAW OFFICES OF X.
YOUNG LAI, and ROES 1-10,
Cross-Defendants

ELECTRONICALLY

FILED

BY SUPERIOR COURT OF CALIFORNIA,
COUNTY OF NEVADA

08/11/2025

LAILA A. WAHEED, CLERK OF THE COURT
LUCAS MEADOWS, DEPUTY

Case No.: CU0002107

**DEFENDANTS FREDERICK BOEY AND
RONGXIA XU'S NOTICE OF DEMURRER
AND DEMURRER TO PLAINTIFF'S
COMPLAINT; MEMORANDUM OF POINTS
AND AUTHORITIES**

Date: 10/10/2025

Time: 10 A.M.

Dept.: 6

Judge: Hon. S. Robert Tice-Raskin

Complaint Filed:

May 19, 2025

Cross-Complaint Filed:

August 4, 2025

Trial Date:

Not Set

1 **TO THE COURT, ALL PARTIES, AND THEIR COUNSEL OF RECORD:**

2 **PLEASE TAKE NOTICE** that, that on _____, 2025 at _____ a.m./p.m., or as
3 soon thereafter as the above-captioned court may hear the matter, and in Department 6 of the Nevada
4 County Superior Court, located at 201 Church Street, Nevada City, California 95959, Defendants and
5 Cross-Plaintiffs FREDERICK BOEY and RONGXIA XU, doing business as Fred's Chinese Szechuan
6 Restaurant (erroneously sued as "Fred's Chinese Restaurant"; collectively, "**Defendants**") move the
7 Court for an order sustaining their Demurrer to each of Plaintiff and Cross-Defendant SHENG WANG
8 CHEN's ("**Plaintiff**") nine (9) causes of action in his Complaint.

9 This demurrer is made, pursuant to Code of Civil Procedure § 430.10(b), (d), (e), and (f) on
10 the grounds that: (1) Plaintiff lacks legal capacity to sue because he executed a pre-litigation settlement
11 agreement releasing all claims against Defendants; (2) there is a defect or misjoinder of parties as
12 Plaintiff released and covenanted not to sue Defendants; (3) the Complaint fails to state facts sufficient
13 to constitute any cause of action; and (4) the Complaint is uncertain due to ambiguous and contradictory
14 allegations.

15 This Demurrer is based on: (1) this Notice; (2) the accompanying Memorandum of Points
16 and Authorities; (3) the Declaration of Erik J. Christensen in support; (4) the Request for Judicial Notice;
17 (5) Defendants' Cross-Complaint and supporting exhibits (*e.g.*, the Declarations explained below); (6)
18 all other papers filed in this matter; (6) documents and information this Court may take judicial notice
19 of; and (7) such other evidence (oral or physical) that may be presented at the hearing.

20 Given that this Motion incorporates declarations and judicial notice requests from a prior
21 filing, the following references shall be used herein:

- 22 1. The Declaration of Erik J. Christensen in support of Defendants' *prior* motion (*i.e.*, their
23 Motion to Enforce the Settlement Agreement) is referred to herein as ("**Erik Decl.**");
- 24 2. The Request for Judicial Notice filed in support of Defendants' *prior* motion (referenced
25 above) is referred to herein as ("**RJN**");
- 26 3. The Declaration of Defendant Frederick Boey filed in support of Defendants' *prior* motion
27 is referenced herein as ("**Fred Decl.**");

- 1 4. The Declaration of Defendant Rongxia Xu filed in support of Defendants' *prior* motion is
2 referenced herein as ("**Rongxia Decl.**");
3 5. The Declaration of Lillian Boey filed in support of Defendants' *prior* motion is referenced
4 herein as ("**Lillian Decl.**"); and
5 6. The Declaration of Quentin Truong filed in support of Defendants' *prior* motion is
6 referenced herein as ("**Quentin Decl.**").

7 Pursuant to California Rules of Court, Rule 3.1308, the trial court will issue its tentative ruling
8 on this Motion by 3:00 p.m. the court day before the scheduled hearing:

9 If the court has not directed argument, oral argument must be permitted only if a party
10 notifies all other parties and the court by 4:00 p.m. on the court day before the hearing
11 of the party's intention to appear. A party must notify all other parties by telephone or
12 in person. The court must accept notice by telephone and, at its discretion, may also
13 designate alternative methods by which a party may notify the court of the party's
14 intention to appear. The tentative ruling will become the ruling of the court if the court
15 has not directed oral argument by its tentative ruling and notice of intent to appear has
16 not been given.

17 The Nevada County Superior Court makes its tentative rulings available at the following
18 website: <https://www.nevada.courts.ca.gov/online-services/tentative-rulings>. There, the Court explains
19 that, "to argue at the hearing, you must notify the parties and, thereafter, notify the clerk's office by
20 email at OA@nccourt.net or by calling (530)362-4309 by 4:00 p.m. the court day prior to the date and
21 time set for hearing."

22 Dated: August 11, 2025



ERIK J. CHRISTENSEN
Counsel for Defendants and Cross-Plaintiffs
FREDERICK BOEY and RONGXIA XU

1 **GENERAL DEMURRER**

2 Pursuant to Sections 430.10 (b), (d), (e), and (f) of the Code of Civil Procedure, and Rule
3 3.1320 of the California Rules of Court, Defendants hereby generally demurrer to Plaintiff's Complaint
4 ("Complaint") and specifically demurrer to each of its nine Causes of Action as set forth below.

5 **DEMURRER TO THE FIRST CAUSE OF ACTION**

6 (Failure to Pay Overtime Compensation Under Cal. Lab. Code §§ 1194, 510, 515)

7 1. The First Cause of Action fails because Plaintiff lacks legal capacity to sue Defendants
8 under this claim due to his release of all claims (known and unknown) against them after he abandoned
9 his job and before he initiated this action. (Code of Civ. Proc. § 430.10(b).)

10 2. The First Cause of Action fails because there is a defect or misjoinder of Defendants,
11 who Plaintiff has agreed not to sue and against whom he has no lawful claims. (*Id.* at subd. (d).)

12 3. The First Cause of Action fails to state facts sufficient to constitute any cause of action
13 against Defendants. (*Id.* at subd. (e); *Czajkowski v. Haskell & White, LLP* (2012) 208 Cal.App.4th 166,
14 173 ["a demurrer does not admit the plaintiff's contentions nor conclusions of law or fact"].)

15 4. The First Cause of Action fails because its absence of necessary factual pleading,
16 coupled with contradictory allegations, renders this claim ambiguous and unintelligible. (Code of Civ.
17 Proc. § 430.10(f).)

18 **DEMURRER TO THE SECOND CAUSE OF ACTION**

19 (Failure to Pay Minimum Wage Under Cal. Lab. Code §§ 1182.12, 1194, 1194.2, 1197)

20 5. The Second Cause of Action fails because Plaintiff lacks legal capacity to sue
21 Defendants under this claim due to his release of all claims (known and unknown) against them after he
22 abandoned his job and before he initiated this action. (Code of Civ. Proc. § 430.10(b).)

23 6. The Second Cause of Action fails because there is a defect or misjoinder of
24 Defendants, who Plaintiff has agreed not to sue and against whom he has no lawful claims. (*Id.* at subd.
25 (d).)

26 7. The Second Cause of Action fails to state facts sufficient to constitute any cause of
27 action against Defendants. (*Id.* at subd. (e); *Czajkowski v. Haskell & White, LLP* (2012) 208 Cal.App.4th
28 166, 173 ["a demurrer does not admit the plaintiff's contentions nor conclusions of law or fact"].)

3.

1 8. The Second Cause of Action fails because its absence of necessary factual pleading,
2 coupled with contradictory allegations, renders this claim ambiguous and unintelligible. (Code of Civ.
3 Proc. § 430.10(f).)

4 **DEMURRER TO THE THIRD CAUSE OF ACTION**

5 (Failure to Provide Meal and Rest Periods Under Cal. Lab. Code § 226.7 and Wage Order 5-2001)

6 9. The Third Cause of Action fails because Plaintiff lacks legal capacity to sue
7 Defendants under this claim due to his release of all claims (known and unknown) against them after he
8 abandoned his job and before he initiated this action. (Code of Civ. Proc. § 430.10(b).)

9 10. The Third Cause of Action fails because there is a defect or misjoinder of Defendants,
10 who Plaintiff has agreed not to sue and against whom he has no lawful claims. (*Id.* at subd. (d).)

11 11. The Third Cause of Action fails to state facts sufficient to constitute any cause of action
12 against Defendants. (*Id.* at subd. (e); *Czajkowski v. Haskell & White, LLP* (2012) 208 Cal.App.4th 166,
13 173 [“a demurrer does not admit the plaintiff’s contentions nor conclusions of law or fact”].)

14 12. The Third Cause of Action fails because its absence of necessary factual pleading,
15 coupled with contradictory allegations, renders this claim ambiguous and unintelligible. (Code of Civ.
16 Proc. § 430.10(f).)

17 **DEMURRER TO THE FOURTH CAUSE OF ACTION**

18 (Failure to Furnish Accurate Itemized Wage Statements Under Cal. Lab. Code § 226)

19 13. The Fourth Cause of Action fails because Plaintiff lacks legal capacity to sue
20 Defendants under this claim due to his release of all claims (known and unknown) against them after he
21 abandoned his job and before he initiated this action. (Code of Civ. Proc. § 430.10(b).)

22 14. The Fourth Cause of Action fails because there is a defect or misjoinder of Defendants,
23 who Plaintiff has agreed not to sue and against whom he has no lawful claims. (*Id.* at subd. (d).)

24 15. The Fourth Cause of Action fails to state facts sufficient to constitute any cause of
25 action against Defendants. (*Id.* at subd. (e); *Czajkowski v. Haskell & White, LLP* (2012) 208 Cal.App.4th
26 166, 173 [“a demurrer does not admit the plaintiff’s contentions nor conclusions of law or fact”].)

27 16. The Fourth Cause of Action fails because its absence of necessary factual pleading,
28 coupled with contradictory allegations, renders this claim ambiguous and unintelligible. (Code of Civ.

1 Proc. § 430.10(f).)

2 **DEMURRER TO THE FIFTH CAUSE OF ACTION**

3 (Failure to Timely Pay Wages Due and Owing Upon Termination of Employment Under Cal. Lab.

4 Code §§ 201, 202, 203, 218.5)

5 17. The Fifth Cause of Action fails because Plaintiff lacks legal capacity to sue Defendants
6 under this claim due to his release of all claims (known and unknown) against them after he abandoned
7 his job and before he initiated this action. (Code of Civ. Proc. § 430.10(b).)

8 18. The Fifth Cause of Action fails because there is a defect or misjoinder of Defendants,
9 who Plaintiff has agreed not to sue and against whom he has no lawful claims. (*Id.* at subd. (d).)

10 19. The Fifth Cause of Action fails to state facts sufficient to constitute any cause of action
11 against Defendants. (*Id.* at subd. (e); *Czajkowski v. Haskell & White, LLP* (2012) 208 Cal.App.4th 166,
12 173 [“a demurrer does not admit the plaintiff’s contentions nor conclusions of law or fact”].) This
13 includes application of inapposite law based on the facts alleged.

14 20. The Fifth Cause of Action fails because its absence of necessary factual pleading,
15 coupled with contradictory allegations, renders this claim ambiguous and unintelligible. (Code of Civ.
16 Proc. § 430.10(f).)

17 **DEMURRER TO THE SIXTH CAUSE OF ACTION**

18 (Unfair Competition)

19 21. The Sixth Cause of Action fails because Plaintiff lacks legal capacity to sue
20 Defendants under this claim due to his release of all claims (known and unknown) against them after he
21 abandoned his job and before he initiated this action. (Code of Civ. Proc. § 430.10(b).)

22 22. The Sixth Cause of Action fails because there is a defect or misjoinder of Defendants,
23 who Plaintiff has agreed not to sue and against whom he has no lawful claims. (*Id.* at subd. (d).)

24 23. The Sixth Cause of Action fails to state facts sufficient to constitute any cause of action
25 against Defendants. (*Id.* at subd. (e); *Czajkowski v. Haskell & White, LLP* (2012) 208 Cal.App.4th 166,
26 173 [“a demurrer does not admit the plaintiff’s contentions nor conclusions of law or fact”].) Plaintiff
27 has also failed to plead facts sufficient to establish his assertion that Defendants (or any of them) engaged
28 in “fraudulent business acts or practices.” (Civ. Code § 3294.)

1 24. The Sixth Cause of Action fails because its absence of necessary factual pleading,
2 coupled with contradictory allegations, renders this claim ambiguous and unintelligible. (Code of Civ.
3 Proc. § 430.10(f).)

4 **DEMURRER TO THE SEVENTH CAUSE OF ACTION**

5 (Wrongful Termination in Violation of Public Policy)

6 25. The Seventh Cause of Action fails because Plaintiff lacks legal capacity to sue
7 Defendants under this claim due to his release of all claims (known and unknown) against them after he
8 abandoned his job and before he initiated this action. (Code of Civ. Proc. § 430.10(b).)

9 26. The Seventh Cause of Action fails because there is a defect or misjoinder of
10 Defendants, who Plaintiff has agreed not to sue and against whom he has no lawful claims. (*Id.* at subd.
11 (d).)

12 27. The Seventh Cause of Action fails to state facts sufficient to constitute any cause of
13 action against Defendants. (*Id.* at subd. (e); *Czajkowski v. Haskell & White, LLP* (2012) 208 Cal.App.4th
14 166, 173 [“a demurrer does not admit the plaintiff’s contentions nor conclusions of law or fact”].) This
15 includes Plaintiff’s failure to state facts with particularity sufficient to establish fraud, malice, or
16 oppression, let alone his right to seek punitive damages. (Civ. Code § 3294.)

17 28. The Seventh Cause of Action fails because its absence of necessary factual pleading,
18 coupled with contradictory allegations, renders this claim ambiguous and unintelligible. (Code of Civ.
19 Proc. § 430.10(f).)

20 **DEMURRER TO THE EIGHTH CAUSE OF ACTION**

21 (Retaliation Under Lab. Code § 98.6)

22 29. The Eighth Cause of Action fails because Plaintiff lacks legal capacity to sue
23 Defendants under this claim due to his release of all claims (known and unknown) against them after he
24 abandoned his job and before he initiated this action. (Code of Civ. Proc. § 430.10(b).)

25 30. The Eighth Cause of Action fails because there is a defect or misjoinder of Defendants,
26 who Plaintiff has agreed not to sue and against whom he has no lawful claims. (*Id.* at subd. (d).)

27 31. The Eighth Cause of Action fails to state facts sufficient to constitute any cause of
28 action against Defendants. (*Id.* at subd. (e); *Czajkowski v. Haskell & White, LLP* (2012) 208 Cal.App.4th

1 166, 173 [“a demurrer does not admit the plaintiff’s contentions nor conclusions of law or fact”].) This
2 includes Plaintiff’s failure to state facts with particularity sufficient to establish fraud, malice, or
3 oppression, let alone his right to seek punitive damages. (Civ. Code § 3294.)

4 32. The Eighth Cause of Action fails because its absence of necessary factual pleading,
5 coupled with contradictory allegations, renders this claim ambiguous and unintelligible. (Code of Civ.
6 Proc. § 430.10(f).)

7 **DEMURRER TO THE NINTH CAUSE OF ACTION**

8 (Whistleblower Retaliation Under Cal. Lab. Code § 1102.5)

9 33. The Ninth Cause of Action fails because Plaintiff lacks legal capacity to sue
10 Defendants under this claim due to his release of all claims (known and unknown) against them after he
11 abandoned his job and before he initiated this action. (Code of Civ. Proc. § 430.10(b).)

12 34. The Ninth Cause of Action fails because there is a defect or misjoinder of Defendants,
13 who Plaintiff has agreed not to sue and against whom he has no lawful claims. (*Id.* at subd. (d).)

14 35. The Ninth Cause of Action fails to state facts sufficient to constitute any cause of
15 action against Defendants. (*Id.* at subd. (e); *Czajkowski v. Haskell & White, LLP* (2012) 208 Cal.App.4th
16 166, 173 [“a demurrer does not admit the plaintiff’s contentions nor conclusions of law or fact”].) This
17 includes Plaintiff’s failure to state facts with particularity sufficient to establish fraud, malice, or
18 oppression, let alone his right to seek punitive damages. (Civ. Code § 3294.)

19 36. The Ninth Cause of Action fails because its absence of necessary factual pleading,
20 coupled with contradictory allegations, renders this claim ambiguous and unintelligible. (Code of Civ.
21 Proc. § 430.10(f).)

22 **WHEREFORE**, Defendants pray that this Court:

- 23 1. Sustain this Demurrer without leave to amend;
24 2. Dismiss Plaintiff’s Complaint with prejudice;
25 3. Award Defendants their costs; and
26 4. Grant Defendants such other relief as the Court deems just and proper.

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1 Dated: August 11, 2025

GOLD SUMMIT LEGAL

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5 ERIK J. CHRISTENSEN
6 Counsel for Defendants and Cross-Plaintiffs
7 FREDERICK BOEY and RONGXIA XU
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1 **I. INTRODUCTION.**

2 This case should never have been filed. On March 2, 2025, Plaintiff signed a binding
3 settlement agreement releasing all claims against Defendants in exchange for the exact sum he
4 demanded: \$1,000. He cashed the check the next day. Now he seeks to renege on that agreement and
5 extract an additional \$62,813. California law does not permit this.

6 The Settlement Agreement (“**Agreement**”) bars this entire action as a matter of law. Plaintiff
7 executed this Agreement after the dates he claims his employment ended, releasing all claims “known
8 and unknown” against Defendants pursuant to Civil Code section 1542. He received exactly what he
9 bargained for – \$1,000 in exchange for his promise never to sue Defendants. His signature appears on
10 the Agreement. Defendants’ bank records show that he deposited the check. His counsel acknowledges
11 that Plaintiff received and signed the Agreement. Yet Plaintiff filed this lawsuit anyway.

12 Even if this Court were to find the Agreement somehow unenforceable—which Defendants
13 strongly dispute – Plaintiff’s Complaint would still fail due to a fundamental temporal impossibility:
14 Plaintiff claims Defendants terminated his employment on February 17, 2025, yet simultaneously
15 alleges they fired him for engaging in protected activity on February 24, 2025. An employer cannot fire
16 someone who no longer works there. This temporal paradox alone dooms Plaintiff’s retaliation and
17 wrongful termination claims (Causes of Action 7-9) as a matter of law.

18 Beyond these threshold defects, the Complaint lacks the factual specificity required to state
19 any viable cause of action. Instead of facts, Plaintiff offers only legal conclusions without identifying a
20 single pay period, specific hours worked, or concrete violation. His mathematical allegations are
21 internally inconsistent and impossible. After multiple opportunities to articulate his claims – including
22 meet-and-confer efforts, a safe harbor notice, and Defendants’ prior motion – Plaintiff offers nothing
23 but impermissible conclusions masquerading as facts.

24 Defendants respectfully request that this Court sustain this Demurrer without leave to amend
25 and dismiss Plaintiff’s Complaint with prejudice.

26 **II. RELEVANT FACTUAL AND PROCEDURAL BACKGROUND.**

27 Plaintiff’s own allegations reveal the impossibility of his claims. He asserts employment from
28 “August 20, 2024 through February 17, 2025,” claiming Defendants terminated him on that latter date.

(Complaint, ¶¶ 3, 13, emphasis added.) Yet he simultaneously claims Defendants fired him on February 24, 2025 – seven days after his employment allegedly ended – for making a wage complaint. (*Id.*, at ¶¶ 46-47, 53, 59.) This temporal impossibility pervades his Complaint.

The truth is more straightforward: On March 2, 2025, Plaintiff executed a written, pre-litigation settlement agreement with Defendants. This Agreement released all of Plaintiff’s claims (known and unknown) against Defendants – along with his covenant not to sue them – in exchange for the monetary sum that *he* demanded: \$1,000. (FACC, Ex. 1, ¶¶ 10-11, Ex. A thereto; *Id.*, Ex. 2, ¶¶ 8-11.) Defendants paid him immediately, and Plaintiff deposited the check in his bank account the next day. (*Ibid.*; *Id.*, at Ex. 2, ¶¶ 8-11, Ex. A thereto; Evid. Code §§ 452(g), 453.)

Despite executing this binding release, Plaintiff sent Defendants a letter on April 20, 2025, threatening to sue unless they paid him another \$62,813. (FACC, Ex. 5, ¶ 2(A), Ex. A.) Defendants responded on April 30, 2025, reminding Plaintiff of the Agreement and explaining that he had already waived his claims. (*Id.*, at ¶ 2(B), Ex. B.) That letter stated:

[A]fter Mr. Chen demanded \$500 to \$1,000 to settle his unpaid wage claims, the Boeys obliged. They paid Mr. Chen \$1,000 in exchange for him releasing any claims that he may have had against the Boeys and their business. This settlement/separation agreement was reduced to writing, which was signed and dated by Mr. Chen (the “Separation Agreement”). The Separation Agreement is attached hereto as Exhibit A.

...

A bona fide wage dispute existed between the Boeys and Mr. Chen at the time he abandoned his job at Fred’s Szechuan Chinese Restaurant.

[Fn 1] Mr. Chen’s last day that he worked was February 23, 2025 and, while he was scheduled to work on February 25th, he did not do so. Nor did he return to work thereafter.

(FACC, Ex. 5, Ex. B thereto, pp. 1-3.)

At Plaintiff’s request, Defendants sent him another copy of the Agreement via email on May 1, 2025. (*Id.*, at ¶ 2(C), Ex. 5, Ex. C thereto.) Plaintiff’s counsel responded on May 5, 2025, expanding Plaintiff’s threatened claims to include retaliation and wrongful termination – claims temporally

impossible given Plaintiff's own alleged termination date. (*Id.*, Ex. 5, Ex. D thereto, p. 3.)

Defendants repeatedly attempted to resolve this matter without litigation:

- July 1, 2025: Defendants sent Plaintiff a meet and confer letter outlining the Agreement's preclusive effect and the Complaint's factual deficiencies. (FACC, Ex. 5, ¶ 3; Erik Decl., ¶ 9, Ex. A.)
- July 7, 2025: The Parties telephonically met and conferred. (*Id.*, Ex. 5, ¶ 4; Erik Decl., ¶ 9.)
- July 7, 2025: Defendants filed a comprehensive Motion to Enforce the Settlement Agreement. (*Id.*, Ex. 5, ¶ 5.)
- July 16, 2025: Defendants served a 21-day safe harbor notice. (*Id.*, Ex. 5, ¶ 6.)

Despite these efforts, Plaintiff refused to dismiss his barred claims. Defendants now demur.

III. LEGAL ARGUMENT.

A. Legal Standard And Motion Roadmap.

"The party against whom a complaint or cross-complaint has been filed may object, by demurrer or answer as provided in [Code of Civil Procedure] Section 430.30, to the pleading on any one or more of the following grounds: ... (b) The person who filed the pleading does not have the legal capacity to sue... (d) There is a defect or misjoinder of parties[;] (e) The pleading does not state facts sufficient to constitute a cause of action[; or] (f) The pleading is uncertain. As used in this subdivision, 'uncertain' includes ambiguous and unintelligible." (Code of Civ. Proc. § 430.10.) Defendants file this Demurrer to Plaintiff's Complaint on all four grounds.

"A demurrer tests the legal sufficiency of the complaint. . . . On demurrer, a court must accept properly pleaded facts as true, but a demurrer **does not admit** the plaintiff's contentions nor conclusions of law or fact." (*Czajkowski v. Haskell & White, LLP* (2012) 208 Cal.App.4th 166, 173, emphasis added; *Freeman v. San Diego Ass'n of Realtors* (1999) 77 Cal.App.4th 171, 189 [same].)

The trial court may grant leave to amend where it is possible for plaintiff to cure the defects, however, "[t]he plaintiff has the burden of proving the possibility of cure by amendment." (*Id.*) However, the court should take into consideration that any facts ultimately pled by the plaintiff were based on "the best of [plaintiff and his attorneys'] knowledge, information, and belief, formed after an

inquiry reasonable under the circumstances ...” (Code of Civ. Proc. § 128.7.) Furthermore, when the plaintiff declines an invitation to amend their pleading to cure defects therein, then courts will “assume that the complaint contains their strongest statement of that cause of action.” (*Alfaro v. Community Housing Improvement System & Planning Association, Inc.* (2009) 171 Cal.App.4th 263, 278, citing *Reynolds v. Bement* (2005) 36 Cal.4th 1075, 1091.)

Concerning evidence: while demurrers are usually restrained to the four corners of the complaint, “[t]he courts, however, will not close their eyes to situations where a complaint contains allegations of fact inconsistent with attached documents, or allegations contrary to facts which are judicially noticed. Thus, a pleading valid on its face may nevertheless be subject to demurrer when matters judicially noticed by the court render the complaint meritless.” (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604-605, citations omitted; *see also McAllister v. County of Monterey* (2009) 147 Cal.App.4th 253, 290 [same].)

This is particularly true where, like here, the evidence involves a contract with clear and unambiguous terms. The validity and enforceability of such contracts may be reviewed as a question of law. (*See, e.g., Flores v. Nature’s Best Distribution, LLC* (2016) 7 Cal.App.5th 1, 10, quoting *Mitri v. Arnel Management Co.* (2007) 157 Cal.App.4th 1164, 1169-1170.)

B. The Settlement Agreement Bars This Action.

The Settlement Agreement is dispositive. On March 2, 2025—after any date Plaintiff claims his employment ended—Plaintiff signed a comprehensive release of all claims against Defendants. (FACC, Ex. 1, ¶¶ 10-11, Ex. A thereto.) The Agreement includes: (1) Plaintiff’s specific release of all claims “known and unknown”; (2) an express Civil Code section 1542 waiver; (3) Plaintiff’s covenant not to sue Defendants; (4) advisements that Plaintiff could have the Agreement reviewed by his counsel before signing; and (5) payment of exactly what Plaintiff demanded: \$1,000. (FACC, Ex. 1, ¶¶ 10-11, Ex. A thereto [the Agreement].)

This Court may take judicial notice of the Agreement and enforce it as a matter of law because: (1) it bears Plaintiff’s signature; (2) its terms are clear and unambiguous; and (3) Plaintiff concedes he signed it. (*Del E. Webb Corp., supra*, 123 Cal.App.3d at pp. 604-605; FACC, Ex. 5, Ex. D thereto, p. 2 [“no copy of the agreement was given to Chen *after the parties signed it*” (emphasis added)].)

1 Across multiple communications – both during and before litigation – Plaintiff has only
2 argued that the Agreement is not enforceable because: (1) he did not (or could not) read it; (2) he was
3 not given a copy immediately after he signed it that evening; and (3) he could not release his unpaid
4 wage claims as a matter of law. (FACC, Ex. 5, Ex. D thereto, citing Lab. Code § 206.5; *see also*
5 Complaint [failing to mention the Agreement at all].) Each of Plaintiff’s foregoing arguments fail as a
6 matter of law and – thus – may be disposed of in this Demurrer. Defendants examine these points below
7 in the same order they are presented above.

8 First, “ ‘ [o]ne who accepts or signs an instrument, which on its face is a contract, is deemed
9 to assent to all its terms, and cannot escape liability on the ground that he has not read it.’ ” (*Caballero*,
10 *supra*, 69 Cal.App.5th at p. 518.) If they cannot read the contract or do not understand its terms, then
11 they have a duty to seek assistance in learning its contents from an agent of their choosing before signing.
12 (*Rosenthal v. Great Western Fin. Securities Corp.* (1996) 14 Cal.4th 394, 431 [the plaintiffs’ “failure to
13 take measures to learn the contents of the documents they signed is attributable to their own
14 negligence”].) This remains true *even if* the party cannot read the language in which the contract was
15 written. (*Caballero*, *supra*, 69 Cal.App.5th at pp. 517-519.)

16 Here, Plaintiff knew the Agreement was a contract because – at a minimum – it is plainly such
17 on its face. (FACC, Ex. 1, Ex. A thereto.) It was also described as a contract next to Plaintiff’s signature
18 block in Chinese. (FACC, Ex. 1, ¶¶ 10-11, Ex. A thereto; *see also Id.*, at Ex. 2, ¶ 11.) Of equal
19 importance, the Agreement repeatedly advised Plaintiff that he could have it reviewed by his counsel
20 (or agent of his choosing), but he chose not to do so. (*Ibid.*) Therefore, Plaintiff’s first argument fails.

21 Second, Defendants are aware of no law stating that a contract is void if each party is not
22 given a copy immediately after signing it. A law of this nature would make no sense because it would
23 void oral agreements. But even if such a law existed, Plaintiff gave Defendants no chance to give him
24 a copy after he signed it. (*Ibid.*) This is because he threw the Agreement down after he signed it and
25 stormed out of the restaurant in his typical fashion. (*Ibid.*) Furthermore, Defendants gave Plaintiff a
26 copy on the two occasions he asked for them thereafter and before he filed suit. (FACC, Ex. 5, Exs. B-
27 C thereto.) Accordingly, Plaintiff’s second argument fails as well.

28 Third, settlement of wage disputes is permissible when a bona fide dispute exists over whether
5.

1 wages are due or the amount owed – “even if the payment is for an amount less than the total wages
2 claimed by the employee.” (*Watkins v. Wachovia Corp.* (2009) 172 Cal.App.4th 1576, 1587; *Estrada*
3 *v. Royalty Carpet Mills, Inc.* (2022) 76 Cal.App.5th 685, 707-708 [same]; *Wasito v. Kazali* (2021) 68
4 Cal.App.5th 422, 426; *Aleman v. AirTouch Cellular* (2012) 209 Cal.App.4th 556, 577-578 [Lab. Code
5 §§ 206 and 206.5 “do[] not require unconditional payment of disputed amounts”]; *see also* Defendants’
6 Motion to Enforce the Settlement Agreement, pp. 11-14.) And here, there was a bona fide dispute over
7 whether Defendants owe Plaintiff any additional wages at the time the Parties signed the Agreement,
8 and – regardless – Defendants paid Plaintiff the exact sum that he demanded in exchange for his release
9 of claims and covenant not to sue. (FACC, Exs. 1-2, 5.) This bona fide dispute *remains*. (*Ibid.*)

10 Therefore, Plaintiff’s entire action is subject to demur on the grounds that all of his claims
11 against Defendants are barred by the Agreement. And Plaintiff cannot plead his way around this fatal
12 point. Accordingly, Defendants respectfully ask this Court to sustain their Demurrer without leave to
13 amend and to find that Plaintiff’s Complaint was frivolous in light of the Agreement. (Code of Civ.
14 Proc. § 430.10(b)-(d).)

15 **C. Each Cause Of Action Fails To State Facts Sufficient To Constitute A Claim.**

16 1. Plaintiff’s Wage-And-Hour Claims Are Devoid Of Facts And Are
17 Unintelligible.

18 Instead of facts, Plaintiff gives only legal conclusions in support of his First through Sixth
19 Causes of Action. (Complaint, ¶¶ 1-43.) The few factual allegations that he does offer (*Id.*, at ¶¶ 13-15
20 only) reveal mathematical impossibilities and legal contradictions that doom his claims. These three,
21 short paragraphs cannot, and do not, support Plaintiff’s six causes of action. His wage-and-hour claims
22 are therefore subject to demurrer. (Code of Civ. Proc. § 430.10(e)-(f); *Czajkowski, supra*, 208
23 Cal.App.4th at p. 173.)

24 **First Cause of Action (Overtime):** Plaintiff alleges that he worked from August 20, 2024
25 through February 17, 2025, working 69 hours per week, six days per week (156 working days).
26 (Complaint, ¶¶ 13-15.) He claims Defendants paid him \$1,850 bi-monthly (*i.e.*, on the 15th and last
27 day of every month). (*Id.*, at ¶ 14.) Yet his math does not add up:

- 28
 - Assuming (*arguendo*) his claimed schedule of 69 hours weekly across 26 weeks is

accurate – which Defendants firmly dispute – then Plaintiff is asserting that he worked approximately 1,794 total hours.

- This yields 754 overtime hours (“OT”). (26wks x 29OT = 725OT.)
- Here, Plaintiff seeks only overtime premiums – the additional 0.5× compensation above regular rate – not the minimum wage component, which is the basis of his Second Cause of Action. In other words, he cannot recover the same minimum wage portion twice.

- At 2024’s \$16.00 and 2025’s \$16.50 minimum wage rates (Complaint, ¶ 19), the overtime premium (the extra 0.5×) for 754 hours would be approximately **\$6,200**.

- Yet Plaintiff demands “*in excess of \$24,146.85*” in unpaid overtime in his Prayer for Relief. These figures simply do not add up. This mathematical incoherence renders his claim unintelligible. (Code of Civ. Proc. § 430.10(f).)

- This also reveals that Plaintiff has not provided facts sufficient for Defendants to assess how Plaintiff could have possibly arrived at the foregoing figure. Nor has he provided facts establishing whether how much his schedule varied, including whether he took days off or did not work on some days because the restaurant was closed. (Complaint, ¶ 15 [admitting that his schedule was “*normally*” six days per week, which strongly infers variation, which will directly impact the outcome of his claims]; Code of Civ. Proc. § 430.10(e).)

Second Cause of Action (Minimum Wage): This cause of action collapses under its own contradictions. (Complaint, ¶¶ 18-23.) Plaintiff purports to seek unpaid minimum wages but instead discusses *only overtime compensation*, which is governed by entirely different statutes and calculations. (*Id.*, at ¶ 21; *compare* Lab. Code §§ 1182.12 and 1194 [minimum wage] with Lab. Code § 510 [overtime].)

This fundamental confusion between minimum wage and overtime renders the claim unintelligible. Plaintiff cannot state a minimum wage violation by alleging overtime violations, particularly where – like here – they are separately addressed. (Complaint, ¶¶ 9-17 [overtime]; ¶¶ 18-23 [minimum wage].)

Furthermore – Plaintiff asserts that he is still owed approximately \$12,165.50 in unpaid minimum wages, *inclusive* of liquidated damages. (Complaint, Prayer No. 2.) However, Plaintiff admits

1 that Defendants paid him at least \$24,050 (\$1,850 x 13 pay periods). (*Id.*, at ¶¶ 13-15.) Like above,
2 Plaintiff's numbers simply do not align with reality, let alone internally with his pleadings.

3 Beyond these threshold defects, Plaintiff offers no facts whatsoever supporting his minimum
4 wage claim. He merely recites statutory language and concludes – without any factual bridge – that he
5 “is entitled to the unpaid balance of the full amount of his minimum wage.” (*Id.*, at ¶ 22.) This bare
6 legal conclusion cannot survive demurrer. (*Czajkowski, supra*, 208 Cal.App.4th at p. 173.)

7 **Third Cause of Action (Meal and Rest Periods):** This cause of action similarly lacks any
8 factual allegations. (Complaint, ¶¶ 24-27.) Plaintiff demands “one hour of pay for each [meal and/or
9 rest] break violation,” but he never identifies an instance where he was allegedly denied a break. (*Ibid.*)

10 Plaintiff's claim is made entirely of statutory recitation followed by the naked conclusion that
11 Defendants violated these laws. Plaintiff fails to allege, for example: (1) how many meal breaks he
12 allegedly missed; (2) how many *rest* breaks he allegedly missed; (3) which specific workdays involved
13 violations; and (4) whether he received any breaks at all (whether in whole or in part). His Complaint
14 suggests that he was able to take at least some breaks (even if interrupted). (*Id.*, at ¶ 26.) And the
15 evidence shows that Plaintiff may not be entirely forthcoming on purpose. (FACC, Ex. 1, ¶ 7; *Id.*, at Ex.
16 2, ¶ 5; *Id.*, at ¶¶ 2-5.)

17 This matters for multiple reasons. California law requires employers to provide meal and rest
18 breaks, *but meal periods are unpaid*. (Lab. Code § 512(a); *Brinker Rest. Corp. v. Super. Ct.* (2012) 53
19 Cal.4th 1004, 1036 & fn. 15.) In other words, meal breaks do not count towards an employees' hours
20 worked. So, without identifying specific violations, Defendants cannot meaningfully respond to these
21 allegations, and the Court cannot determine whether any cause of action exists.

22 **Fourth Cause of Action (Wage Statement Violations):** This claim epitomizes Plaintiff's
23 reliance on conclusions over facts. (Complaint, ¶¶ 28-32.) There, Plaintiff merely parrots Labor Code
24 section 226(a)'s requirements, but he never explains which specific requirement Defendants allegedly
25 violated, when any violation occurred, let alone describe how the violation happened. (*Id.*, at ¶ 31.)

26 The statute requires wage statements to include nine distinct categories of information. (Lab.
27 Code § 226(a)(1)-(9).) Plaintiff's failure to identify which category was allegedly missing or inaccurate
28 renders his claim fatally uncertain. Was the issue missing hours worked or pay? Incorrect hours, hours

1 worked, pay, or pay rates? Absent or inaccurate deductions? The Complaint provides no answer.

2 Like above, Plaintiff's objectively inaccurate math compounds the uncertainty of this cause
3 of action. For example, Plaintiff demands "up to \$4,000" in penalties while acknowledging the statutory
4 scheme provides only \$50 for an initial violation and \$100 per subsequent violation. (*Id.*, at ¶ 32.) To
5 reach \$4,000 would require 39 subsequent violations after an initial violation, yet Plaintiff worked for
6 Defendants for only 13 pay periods as explained above. This would yield a *maximum* penalty of \$1,250
7 (\$50 + 12 x \$100). The unexplained discrepancy between Plaintiff's demand and the statutory
8 framework renders his claim unintelligible.

9 **Fifth Cause of Action (Waiting Time Penalties):** Plaintiff seeks waiting time penalties
10 under Labor Code sections 201-203. (Complaint, ¶¶ 33-36.) But his contradictory allegations about his
11 employment separation date doom this claim.

12 Labor Code section 201 applies when an employer discharges an employee; section 202
13 applies when an employee quits. The distinction controls both the timing of final wage payment and the
14 availability of penalties. Yet Plaintiff cannot maintain a consistent position about whether he quit or was
15 fired, let alone when this occurred:

- 16 • He claims his employment ended February 17, 2025. (Complaint, ¶¶ 3, 13);
- 17 • He simultaneously claims termination on February 24, 2025. (*Id.*, at ¶¶ 46-47, 53, 59);
- 18 • The evidence shows he worked through February 23, 2025 and that he was not separated
19 until he signed the Agreement. (FACC, Exs. 1-3); and
- 20 • He signed a separation agreement on March 2, 2025. (FACC, Ex. 1, ¶¶ 10-11, Ex. A
21 thereto.)

22 These temporal contradictions prevent Plaintiff from establishing which statute applies, when
23 penalties would begin accruing, or whether he has stated any violation at all. Even in the best light, the
24 claim lacks the factual specificity required to state a cause of action.

25 **Sixth Cause of Action (Unfair Competition):** This claim is entirely derivative of Plaintiff's
26 wage-and-hour claims. (Complaint, ¶¶ 37-43; Bus. & Prof. Code §§ 17200, *et seq.*) Because each
27 underlying claim fails for lack of factual support, this derivative claim necessarily fails as well.

28 Plaintiff attempts to elevate his claim by alleging "fraudulent business acts or practices" (*Id.*,
9.

1 at ¶ 39), but he provides no facts supporting fraud. This is surprising because fraud requires Plaintiff to
2 meet a heightened pleading standard, where he must allege: specific factual pleading showing
3 misrepresentation, knowledge of falsity, intent to defraud, justifiable reliance, and resulting damage.
4 (Civ. Code § 3294; *Lazar v. Super. Ct.* (1996) 12 Cal.4th 631, 638.) In essence, Plaintiff pleads none of
5 these elements with the required particularity.

6 In conclusion, Plaintiff's First through Sixth Causes of Action suffer from the same fatal
7 defects: (1) absence of necessary facts; (2) reliance on legal conclusions; and (3) internal contradictions
8 that render these claims unintelligible. Plaintiff has had multiple opportunities to articulate his claims:
9 (a) through his initial Complaint; (b) in his correspondence with Defendants; (c) in answer to
10 Defendants' safe harbor notice; and (d) in response to Defendants' meet-and-confer efforts. (Code of
11 Civ. Proc. § 128.7.) His consistent failure to provide basic factual allegations demonstrates the
12 impossibility of amendment. (*Alfaro, supra*, 171 Cal.App.4th at p. 278.) Accordingly, Defendants
13 respectfully ask the Court to sustain this Demurrer to these causes of action without leave to amend.

14 2. Plaintiff's Retaliation And Wrongful Termination Claims Fail Because Of
15 Temporal Impossibility.

16 To establish a prima facie case of retaliation, "a plaintiff must show (1) he or she engaged in
17 a 'protected activity,' (2) the employer subjected the employee to an adverse employment action, and
18 (3) a causal link existed between the protected activity and the employer's action." (*Yanowitz v. L'Oreal*
19 *USA, Inc.* (2005) 36 Cal.4th 1028, 1042.) "An 'adverse employment action,' . . . , requires a 'substantial
20 adverse change in the terms and conditions of the plaintiff's employment.'" (*Holmes v. Petrovich*
21 *Development Co., LLC* (2011) 191 Cal.App.4th 1047, 1063.) As shown below, this law demonstrates
22 why Plaintiff's Seventh through Ninth Causes of Action must fail.

23 Here, Plaintiff twice asserts that Defendants terminated him on February 17, 2025.
24 (Complaint, ¶¶ 3, 13.) In other words, he asserts that he was no longer Defendants' employee after that
25 date. Accordingly, Plaintiff could not have suffered an adverse employment action after that date
26 because he could suffer no additional "adverse change(s) in the terms and conditions of" his
27 employment. (*Yanowitz, supra*, 36 Cal.4th at p. 1042; *Holmes, supra*, 191 Cal.App.4th at p. 1063.)

28 Therefore, it is highly problematic that Plaintiff asserts that the adverse employment action
10.

1 that he suffered took place on February 24, 2025. (Complaint, ¶ 46.) Curiously, Plaintiff claims that
2 his adverse employment action was “Defendants terminat[ing] Plaintiff’s job.” (*Ibid.*) But this puts the
3 cart before the horse for the reasons explained above.

4 On top of this, Plaintiff admitted – prior to filing suit – that he was basing his Seventh, Eighth,
5 and Ninth Causes of Action on “the restaurant’s account of events” (*i.e.*, defense counsel’s April 30,
6 2025 letter), which Plaintiff interpreted as saying that Defendants “fired [him] because he asked for
7 unpaid wages and threatened to sue.” (FACC, Ex. 5, Ex. D thereto, p. 3.) However, a plain reading of
8 Defendant’s April 30th letter shows that they never made this statement. (FACC, Ex. 5, Ex. B.) There
9 – Defendants only expressed that: (1) Plaintiff had abandoned his job by being a no-call/no-show for
10 five straight days; and (2) the Parties entered into the Agreement on March 2, 2025 as a result of
11 Plaintiff’s demand for a settlement payment of \$1,000 to release any claims that he might have against
12 Defendants. (*Ibid.*) Plaintiff’s admission and an objective reading of the April 30th letter show that
13 Plaintiff cannot amend these causes of action to state viable claims because they are based on a clear
14 misinterpretation of Defendants’ statements therein.

15 **D. Leave To Amend Should Be Denied.**

16 “The plaintiff has the burden of proving the possibility of cure by amendment.” (*Czajkowski,*
17 *supra*, 208 Cal.App.4th at p. 173.) Plaintiff cannot meet this burden for multiple independent reasons.

18 First, the Settlement Agreement presents an insurmountable bar. No amendment can change
19 the fact that Plaintiff signed a binding release after demanding and receiving exactly what he requested:
20 \$1,000 in exchange for releasing his claims. Amendment would be futile because Plaintiff cannot
21 truthfully plead around his own signature, his deposit of the settlement check, or the comprehensive
22 release he executed. (*Cantu v. Resolution Trust Corp.* (1992) 4 Cal.App.4th 857, 879 [“The principle is
23 that of truthful pleading”].)

24 Second, Plaintiff has already had multiple opportunities to cure these defects. Despite
25 Defendants’ July 1 meet-and-confer letter, July 7 telephonic conference, Motion to Enforce Settlement
26 Agreement, and July 16 safe harbor notice, Plaintiff has neither amended his Complaint nor articulated
27 how he could cure its defects. Courts “assume that the complaint contains their strongest statement of
28

1 that cause of action” when plaintiffs decline opportunities to amend. (*Alfaro, supra*, 171 Cal.App.4th at
2 p. 278.)

3 Third, Plaintiff’s temporal contradictions cannot be legitimately reconciled. Plaintiff cannot
4 simultaneously have been terminated on February 17 and February 24, 2025. These are not pleading
5 defects, they reflect fundamental inconsistencies that no amendment can cure.

6 **IV. CONCLUSION.**

7 For the foregoing reasons, Defendants respectfully request that this Court sustain their
8 demurrer to all nine causes of action in Plaintiff’s Complaint without leave to amend. The Agreement
9 bars this entire action as a matter of law. Even setting aside this dispositive issue, each cause of action
10 fails to state facts sufficient to constitute any claim, relies on temporal impossibilities, and suffers from
11 uncertainty that renders the Complaint unintelligible.

12 Plaintiff has had ample opportunity to cure these defects but has declined to do so. His
13 signature on the Agreement, his acceptance of the settlement payment, and his inability to plead basic
14 facts supporting his claims all demonstrate that amendment would be futile.

15 Defendants therefore respectfully request that the Court enter an order: (1) sustaining this
16 demurrer in its entirety; (2) denying leave to amend; and (3) dismissing Plaintiff’s Complaint with
17 prejudice.

18
19 Dated: August 11, 2025



21 ERIK J. CHRISTENSEN
22 Attorney for Defendants
23 FRED BOEY and RONGXIA XU,
24 dba Fred’s Chinese Szechuan Restaurant
25
26
27
28

PROOF OF SERVICE
(Code of Civ. Proc. §§ 1013(a) and 2015.5)

I am employed in the County of Washoe, State of Nevada. I am over the age of 18 and not a party to this action. My business mailing address is Gold Summit Legal, 548 Market St., Ste. 41750, San Francisco, CA 94104.

On the date listed below, and in the matter short-titled *Sheng Wang Chen v. Frederick Boey, et al.*, Nevada County Superior Court Case No. CV0002107, I served the parties and/or their counsel addressed below with copies of the following captioned documents by the method(s) indicated herein:

1. DEFENDANTS FREDERICK BOEY AND RONGXIA XU'S NOTICE OF DEMURRER AND DEMURRER TO PLAINTIFF'S COMPLAINT; MEMORANDUM OF POINTS AND AUTHORITIES.

☐ **(BY PERSONAL DELIVERY):** I placed the original of the foregoing document(s) in a sealed envelope addressed to the party listed above, and caused such envelope to be delivered by hand to the office of the addressee.

☐ **(BY FACSIMILE):** I caused all pages of the above-entitled document(s) to be sent to the recipient(s) by facsimile at the respective telephone/fax number(s) indicated, infra.

☒ **(BY ELECTRONIC MAIL):** The document(s) listed supra was transmitted via email and/or FTP folder (e.g., the "cloud"), and pursuant to a valid electronic service agreement, to the email address(es) on the service list attached or noted below. (Code of Civ. Proc. § 1010.6(a); Cal.R.Ct. 2.251.) [Plaintiff only].

☐ **(BY OVERNIGHT DELIVERY):** I deposited such document(s) in a box or other facility regularly maintained by UPS, or delivered such document(s) to courier or driver authorized by UPS, with delivery fees paid or provided for, and addressed to the person(s) being served. (Code Civ. Proc. § 1013(d) and (e).) [Defendant Kurt Fischer only].

☐ **(BY FIRST-CLASS MAIL):** In a sealed envelope, addressed as stated below, with postage thereon fully prepaid, and caused such envelope to be placed in the United States mail in Reno, Nevada. I am readily familiar with this firm's practice of collection and processing correspondence for mailing. Under that practice, mail is deposited for mailing with the United States Postal Service in Reno in the ordinary course of business on the same day mail is placed in the office receptacle for mailing, with postage thereon fully prepaid.

☐ **(BY U.S. MAIL):** In a sealed envelope, addressed as stated below, with postage thereon fully prepaid, and caused such envelope to be placed in the United States mail in Reno, Nevada. I am readily familiar with this firm's practice of collection and processing correspondence for mailing. Under that practice, mail is deposited for mailing with the United States Postal Service in Reno in the ordinary course of business on the same day mail is placed in the office receptacle for mailing, with postage thereon fully prepaid.

///

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6 Counsel for Plaintiff
7 Sheng Wang Chen

8 I declare under penalty of perjury under the laws of California that the foregoing is true and correct.
9 Executed on August 11, 2025, in Washoe County, Nevada.

10 

11 ERIK J. CHRISTENSEN